

The Shillong (Rifile Range and Umlong) Cantonments Assimilation of Laws Act, 1954

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State of Meghalaya - Act

The Shillong (Rifile Range and Umlong) Cantonments Assimilation of Laws Act, 1954

MEGHALAYA

India

The Shillong (Rifile Range and Umlong) Cantonments Assimilation of Laws Act, 1954

Act 31 of 1954

Published in Gazette of India on 28 May 1954

Not commenced

[This is the version of this document from 28 May 1954.]

[Note: The original publication document is not available and this content could not be verified.]

An Act to assimilate certain laws in force in the scheduled areas to the laws in force in the Khasi and Jaintia Hills District.

BE it enacted by Parliament in the Fifth Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Shillong (Rifile Range and Umlong) Cantonments Assimilation of Laws Act, 1954.

(2)

It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.

1. 16th August, 1954, see Gazette of India 1954, Part II, s. 3.

2.

Definitions.-

In this Act:-

(a)

appointed day means the date appointed under sub-section (2) of section 1 for the coming into force of this Act.

(b)

law means so much of any Act, Ordinance, Regulation, rule, order or bye-law as relates to any of the matters enumerated in Lists I and III in the Seventh Schedule to the Constitution;

(c)

"scheduled areas means, the areas specified in the Schedule.

3.

Assimilation of laws.-

(1)

All laws which immediately before the appointed day extend to, or are in force in the scheduled areas shall on that day cease to be in force in the scheduled areas except as respects things done or omitted to be done before that day, and for the removal of doubts, it is hereby declared that section 6 of the General Clauses Act, 1897 (10 of 1897) shall apply in relation to such successor as it applies in relation to the repeal of an enactment by a Central Act.

(2)

All laws which immediately before the appointed day extend to, or in force in, the Khasi and Jaintia Hills District shall as from that day extend to and be in force in the scheduled areas.

4.

Removal of difficulties.-

If any difficulty arises in relation to the transition under section 3 from one law or group of laws to another law or group of laws, the Central Government may, by order notified in the Official Gazette, make such provisions as it considers necessary for the removal of the difficulty.

The Schedule

[See Section 2(C)]

(1)

The Shillong (Rifle Range) Cantonment, that is to say, the area as defined below:-

Note1.- This area lies about half a mile to the west of Laban village, and about the same distance south of the Umjasai river as it runs from west to east from Cantonment Boundary Pillar No.37.

It is nowhere contiguous with the boundaries of the Shillong Cantonment.

Note 2.-No. 1 Boundary Pillar is situated at a bearing of 313o and at a distance of 420 feet from the centre of the 400o firing point on the main range through which the Ummawlong stream flows, and at a bearing of 243o and at a distance of 565 feet from centre of the 600o firing point on the same range, Magnetic variation, when this boundary was surveyed in 1926, was 15o west.

Boundaries of the detached area

Pillars

Bearing from Magnetic North

Direct Horizontal distance in feet.

Degrees

Minutes

Pillar No. 1 to Pillar No. 2

The boundary

runs from pillar No 1 in a north-westerly direction crossing the head of a Nala, to Pillar No. 2, which is situated on spur across this Nala.

308

18

335

Pillar No. 2 to Pillar No. 3

Thence it veers slightly more north wards and descends a thickly wooded slope until it reaches a stream at pillar No. 3

317
12
391
Pillar No. 3 to Pillar No. 4
The boundary
is formed by the stream between these two pillars and runs in a
south-westerly direction. Pillar No. 4 is in midstream.
219
42
830
Pillar No. 4 to Pillar No. 5
Thence it turns sharp south-east to pillar No. 5 situated at the foot of a steep of hill.
144
48
61
Pillar No. 5 to Pillar No. 6
Thence the boundary again turns sharp south-west with a slight diagonal ascent.
238
12
113
Pillar No. 6 to Pillar No. 7
From Pillar No. 6 the slight diagonal ascent is continue but almost due south.
187
24
164
Pillar No. 7 to Pillar No. 8
The boundary
thence continues in the same line for a distance of 40 Per feet whence
it curves south-west to Pillar No. 8 situated in the center of a Nala 50
feet to the south-east of the south corner of a disused range butt.
212
6
208
Pillar No. 8 to Pillar No. 9
Thence to the south corner of this butt and along the Pillar No. 9 in the centre of the south-west side of the butt.
324
48
138
Pillar No. 9 to Pillar No. 10
The boundary
thence turns a right angle to run south-west straight up a steep slope
for a distance of 150 feet, thence turning south to follow a spur for
180 feet upto Pillar No. 10.
205
48
300
Pillar No. 10 to Pillar No. 11
Thence under the brow of this spur in a curve, for 95 feet to the south-east and 60 feet almost south.
141
54
150

Pillar No. 11 to Pillar No. 12

Thence south-west to Pillar No. 12 situated on the crest of the spur.

238

54

120

Pillar No 12 to Pillar No. 13

The boundary between these two Pillars follows up the same spur in a south-easterly direction.

225

30

391

Pillar No. 13 to Pillar No. 14

Thence the boundary turns south-east and runs down to a Nala.

159

30

231

Pillar No. 14 to Pillar No. 15

Thence in the same line to a spur across the Nala.

154

18

268

Pillar No. 15 to Pillar No. 16

Thence in the same line across this spur to the south slope of it.

152

30

320

Pillar No. 16 to Pillar No. 17

The boundary turns Cast from Pillar No. 16 along the south slope of the spur.

77

12

235

Pillar No. 17 to Pillar No. 18

In the same line down the south-east slope of this spur.

82

36

210

Pillar No. 18 to Pillar No. 19

The boundary

here veers north-east, descends a steep slope to cross a Nala down which the Wah Jalynnoh branch of the Ummawlong stream flows and ascends a steep slope to the north-east of this stream to Pillar No. 19 which is situated in a clearing in a thick wood.

75

54

850

Pillar No. 19 to Pillar No. 20

Thence almost

in the same line but slightly more northerly along this clearing to Pillar No. 20 on the edge of a track running south-west from the southern extremity of Kench's Trace.

70

42

464

Pillar No. 20 to Pillar No. 21

Thence north-east to Pillar No. 21 which is situated to the east of the southern extremity of Kench's Trace.

42

48

363

Pillar No. 21 to Pillar No. 22

The Boundary

runs in a north westerly direction along Kench's Trace to Pillar No.

21A; thence in a direct line to Pillar No. 21 B situated on Kench's

Trace; thence along Kench's Trace through Pillar No. 21C to Pillar No.

21D; thence in a direct line to Pillar No. 22 which is situated on the

west bank of the Ummawlong stream just north of the 20 yards firing

point of the rifle range.

326

30

680

Pillar No. 22 to Pillar No. 23

The west bank of the Ummawlong stream forms the boundary between these two pillars.

5

30

1,440

Pillars No. 23 to Pillar No. 24

The boundary hence turns abruptly and runs south-west on to the lower crest of a spur.

203

42

200

Pillar No. 24 to Pillar No. 25

Thence in the same line up and across a Nala running to the south-east of this spur.

203

42

200

Pillar No. 25 to Pillar No. 26

Thence in the same line up the side of a spur to the south-east of this Nala, to Pillar No. 1.

203

12

240

(2)

The Shillong (Umlong) Cantonment, that is to say, the area as defined below:-

Area1,962 acres.

Breamar East Boundary Pillar No.1 or Contonment Boundary Pillar No. 29 is situated on the left bank of the Wah Sohkhlor at a point 300 feet, north-west of Cantonment boundary Pillar No. 30 on a True Bearing of 308o II from Cantonment Boundary Pillar No. 30.

[Magnetic Variation.....55' west in 1931.]

Description

Forward bearings from true North

Horizontal distance in feet.

Degrees

Minutes

From Braemar

Boundary Pillar No. 1 which is also Cantonment Boundary Pillar No. 29

the boundary runs across a stream in a north-westerly direction in a straight line along the boundary of private land to Braemar Boundary Pillar No. 2.

294

30

165

From Braemar

Boundary Pillar No. 2 the boundary runs in a westerly direction along the boundary of private land to the bed of the dry nallah at a point 10 feet north of Braemar Pillar No. 3.

258

05

800

From Braemar

Boundary Pillar No. 3 the boundary runs in a westerly direction along the bed of dry nallah to Braemar Boundary Pillar No. 4 which is situated near the head of this dry nallah.

252

28

800

From Braemar

Boundary Pillar No. 4 the boundary runs in a southerly direction for a distance of about 70 feet to a private cart road, thence along the east side of this road to Braemar Boundary Pillar No. 5 which is situated on a left bank of a stream, where the road crosses the stream.

184

53

580

From Braemar

Boundary Pillar No. 5 the boundary runs in a south-westerly direction across the stream and the cart road up the hill in a straight line to Braemar Boundary Pillar No. 6 alongside the Cantonment Boundary Pillar No. 34.

216

50

240

From Braemar

Boundary Pillar No. 6 the boundary runs in an easterly direction along the Cantonment Boundary to Braemar Boundary Pillar No. 7 which is situated where the road crosses the Wah Sohkhur on its right bank approximately 46 feet west of Cantonment Boundary Pillar No. 33 situated on the hillside.

97

05

705

From Braemary

Boundary Pillar No. 7 the Boundary runs in a north-easterly direction along the Cantonment Boundary which is the right bank of the Wah Sohkhur (Wah Lindoh) stream to Braemar Boundary Pillar No. 8 which is situated on the right bank where the river bends left handed below Cantonment Boundary Pillar No. 30.

36

30

1,150

From Braemar

Boundary Pillar No. 8 in a northwesterly direction along the Cantonment

Boundary which is the right bank of the Wah Sokhlur (Wah Lindoh) stream

and crossing it opposite Braemar Boundary Pillar No. 1.

292

30

195

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